

25SMCV01811 25SMCV01811

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-25

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Case Number: 25SMCV01811 Hearing Date: August 25, 2026 Dept: I

The court has before it four motions to compel. The underlying suit is brought by two

plaintiffs. They claim that

defendants—the landlords—acted improperly including by wrongfully evicting

them. Defendants served discovery on

February 11, 2025. Plaintiffs did not

respond. Defendants gave plaintiffs

additional time, although not as long as plaintiffs wanted. When that extension expired, there still were

no responses. Plaintiffs asked for 45

days more, but defendants agreed to only two weeks. Even then, there were no responses. Defendants filed these motions on March 25,

2026. Plaintiffs' opposition was

essentially a request for a 30 day stay and a continuance of the hearing. No substantive opposition was filed. On April 23, 2026, the court held a hearing

on the motions. The court continued the

motions and set an IDC, noting that the case “screams out” for discovery

management. Plaintiffs, who brought the

suit, claimed that they were worried about broadsides of discovery and not enough time to respond. Defendants stated that they were open to reasonable extensions, but only reasonable extensions. The court noted that plaintiffs' earlier request for a 90 day extension was a lot, but that perhaps defendants ought to have granted it if there was no pressing need for earlier responses in return for a promise that there would in fact be substantive responses at the end of that time. There were also issues relating to potential depositions, but they were not discussed at that time. In any event, the court set the IDC. Defendants filed an IDC statement, but it was unilateral because plaintiffs had not provided defendants with their part of the submission. In defendants' statement, they proposed a case management schedule with dates for written discovery and depositions. The IDC was set for May 22, 2026, but it did not go forward because plaintiffs had not filed any IDC statement nor responded to defendants' statement. Because the IDC failed, the court's prior order—holding the discovery in abeyance—needed to be superseded by a new order. Accordingly, the motions were continued to July 2, 2026. Plaintiffs

filed no substantive opposition to the motions to compel, but they did apply, ex

parte to continue the hearings. The

court granted plaintiffs' request to continue the hearings, and they were

continued to today. On August 13, 2026,

defendants filed a notice of non-receipt of any opposition to their motions.

The discovery has been outstanding now for eight

months. That is more than enough time

for plaintiffs to have responded or at least filed an opposition. The court has reviewed the discovery, and the

court sees no reason why plaintiffs have not responded to it. Therefore, the motions are GRANTED. Plaintiffs have 15 days to provide verified

responses to the outstanding written discovery without objection. Documents are to be provided at the same

time. The court notes that there was no

sanction request in the notice of motion, which the court views as an act of

goodwill by the defense. Plaintiffs are

advised again: they are entitled to litigate and sue the defendants. What they are not entitled to do is be

plaintiffs but refuse to participate in the litigation process. They are strongly urged to provide the

discovery responses. The court sees no

reason why, in this lengthy period, they have not done so. The court also warns plaintiffs that the

failure to comply could lead to a renewed motion, but this time with the

possibility of evidentiary, issue, or even terminating sanctions.